

1.

CASE #	CASE NAME	HEARING NAME
CVRI2302700	ASL BUILDERS, INC. VS HOOVER	MOTION TO COMPEL FURTHER RESPONSES TO FIRST SET OF FORM INTERROGATORIES [SET ONE]

Tentative Ruling: Moot

Before filing a motion to compel a further response, the moving party must engage in a reasonable and good faith attempt to resolve informally each issue set forth in the motion and must file an appropriate declaration with the motion. (Code Civ. Proc. §§ 2016.040, 2030.300, subd. (b).) The factors in determining whether a party made a “reasonable” and “good faith” attempt to resolve the issues informally may include the size of case, complexity of discovery, previous relations with opposing counsel, the nature of the issues, the type and scope of discovery requests, the time available before the motion filing deadline and the prospects for success of the meet and confer. (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 431.) A single letter followed by a response of refusal may be sufficient in certain circumstances to constitute a proper meet and confer. (*Id.* at 432.) A good faith meet and confer attempt requires more than just an attempt to persuade the objector of the error of his or her ways, it requires counsel to talk the matter over, compares their views, consult, and deliberate. (*Clemente v. Alegre* (2009) 177 Cal.App.4th 1277, 1294.) It requires a serious attempt by the moving party to informally resolve each issue with the responses. (*Id.* at 1293.)

On December 23, 2025, Movants served their discovery requests on the Hoovers. (Hoggard Decl., ¶3, Exh. A.) The Hoovers served verified responses and objections on March 10, 2026. (*Id.* at ¶4, Exh. B.) Movants’ attorney, Mr. Hoggard, sent an email to and left three voicemails with the Hoovers’ counsel but as of the date of the filing of the motion, there has been no response. (*Id.* at ¶¶5-6.) Defendant’s efforts were reasonable and in good faith.

The Hoovers’ attorney, Mr. Mellor, confirmed the communication attempts by Mr. Hoggard. (Mellor Decl., ¶¶6, 8-9.) Despite this, Mr. Mellor argues the meet and confer efforts were not made in good faith because Mr. Mellor was engaged in trial. (*Id.* at ¶¶6-9.) Mr. Mellor believes the motion to compel is untimely filed; thus Movants waived its right to compel further responses and the discovery disputes are moot. (*Id.* at ¶¶10-11.) Mr. Mellor maintains he would have engaged in meet and confer efforts had movants initiated efforts earlier than April 21. (*Id.* at ¶12.)

Hearing on June 3, 2026.

Based on the foregoing, the Court held that attorney Hoggard being in trial does not absolve him from meet and confer responsibilities. Accordingly, the Court continued hearing on the motion and ordered the parties to meet and confer and file a separate joint statement for both motions no later than 10 days prior to the continued hearing date of July 1, 2026. (6/3/2026 Ruling.) The Court ordered each joint statement to

outline the additional meet and confer efforts, identify any remaining discovery request at issue, and state the parties' respective positions. (*Ibid.*)

I. Legal Standard

A party may file a motion compelling a further response to interrogatories if it finds that the responses are inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (Code Civ. Proc., § 2030.300, subd. (a).)

The motion for order to compel further responses must be served within 45 days of service of verified responses, plus the additional time if not personally served. (Code Civ. Proc., §§ 2030.300, subd. (c), 1010.6, subd. (a)(4); 1013.) If the responses are objections only, they are treated as verified responses with respect to the 45-day limit, but if the responses are a combination of both unverified responses and objections then the 45-day period does not start as the statute setting forth the time limit requires verification of hybrid responses. (*Gold & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 131, 136.) When the 45-day period applies, the demanding party waives the right to compel any further response if not timely filed. (Code Civ. Proc., §§ 2031.310, subd. (c), 2016.050; see *Sperber v. Robinson* (1994) 26 Cal.App.4th 736, 745.) The 45-day time limit is mandatory and "jurisdictional" such that the Court has no authority to grant a late motion. (*Sexton v. Superior Court (Millikin Med. Ctr.)* (1997) 58 Cal.App.4th 1403, 1410 [late filed motion to compel must be denied where objection raised at hearing even if omitted from opposition papers].) However, the deadline can be extended upon written agreement by the parties. (See Code Civ. Proc., § 2031.310, subd. (c).)

Here, it is undisputed the Hoovers served verified responses to the FROGs and RFPs on March 10, 2026.

In compliance with the Court's order, on June 22, 2026, the parties timely filed a Joint Statement stating the parties met and conferred on July 17, 2026 (sic) via telephone with respect to each FROG and RFP in dispute. Hoover agreed to serve supplemental verified written responses and documents to FROG Nos. 305.4, 305.5 (a) & (b), 311.1, and 311.3 and RFP Nos. 37, 38, 39 and 54 by July 15, 2026. FROG No. 314.1 remains in dispute but "Defendant, Cross-Complainant will agree to amend the response." (Joint Sep. Stmt., pg. 2:20-21.)

Based on the foregoing, it appears the motions are now **MOOT**.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2302700	ASL BUILDERS, INC. VS HOOVER	MOTION TO COMPEL FURTHER RESPONSES TO FIRST SET OF REQUESTS FOR DOCUMENTS AND THINGS (SET ONE)

Tentative Ruling: See #1 above. Moot.